SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN

DATE: 7/2/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002533

PRESIDING: HON. JAMES M. SCHURZ

REPORTER: CLERK: A. URTON

PETITIONER: ALEXANDER VAZ

and

RESPONDENT: EVA VAZ

NATURE OF PROCEEDINGS: REQUEST FOR ORDER –SCHOOL SELECTION; COMMUNITY FUNDS

RULING

This matter is before the Court on Respondent/Mother's June 10, 2026, Request for Order (RFO). Mother's RFO requests (1) school selection for the parties' children, Lachlan (DOB: 11/12/2019) and Tate (DOB: 03/03/2021), (2) an advance of community funds, and (3) orders restricting the use of community funds under Petitioner/Father's sole control. Mother's RFO was brought as an *ex parte* request seeking shortened time for hearing. Father opposed orders pending a hearing but agreed to shortened time.

Specifically, Mother seeks (1) an order that Father pay for Marin Montessori for the boys, (2) an order that Father obtain Mother's consent before using any community funds under his control, (3) an order that Father maintain the joint account at the level of $5,000, and (4) an advance to Mother from community funds of $33,782.

<u>School Selection - Marin Montessori – (MMS)</u>

Mother states that Tate is in his final P3 (kindergarten) year at MMS and that Lachlan will be moving up to elementary school with his friends. School commences on August 25 for Lachlan and August 27 for Tate. Mother describes that the boys are excited to move up with their friends who also attend MMS. Mother is involved at MMS, and she will be a "room parent" in Tate's class next year.

Mother states Father wants the children to switch to public school, although he is amenable to them continuing at MMS if Mother wishes to pay for it. Mother is concerned about transitioning the boys to public school during the period of their parents' separation. Mother borrowed money from her partner to pay the deposit and the first month's tuition to preserve the boys' places at MMS. Mother seeks an order that Father pay for MMS due to his superior financial situation and access to funds. In her Reply, Mother states that Father could advance the funds using a credit card until he receives his expected annual bonus in December.

Father states that the parties' housing costs and debt service exceed his net income, and Mother does not contribute to family expenses. Father asserts that the parties have monthly installment payments totaling $11,321, in addition to their mortgage of $11,432 per month and other living expenses. Father asserts that his actual monthly expenses, excluding MMS tuition, amount to $51,778 per month, in excess of his net income. Father states the tuition at MMS is $6800/month total for the two children, and he opposes incurring that cost given the public school options in Marin. Father secured places for the boys at Park Elementary in Mill Valley, near Father's rental.

Father opposes the children attending MMS because he does not believe that it is necessary for the boys nor affordable for either party. Father states that Mother paid $8000 towards the tuition downpayment in April 2026, over Father's objection. Father requests an order that, if Mother wishes to pay for the tuition for the boys, that she advance the full year so as to avoid the risk of pulling them out mid-year.

Mother's Reply clarifies that the tuition cost is $8237/month at a minimum for the two boys.

Mother's request that Father be ordered to pay tuition for MMS is DENIED, on the grounds that (1) good, viable public school options exist in Marin County and, (2) in spite of his significant monthly income, Father's base monthly income is not sufficient to cover the family's living expenses and private school tuition.

<u>Advance of Community Funds for Attorney's Fees</u>

Mother requests that she be advanced $33,782 from community funds, which consists of $16,282 for attorney's fees (Mother asserts that Father initially agreed to this, as the amount is equal to what he paid his attorney). Mother requests an additional $17,500 because she was recently informed that Father spent that additional amount on his own attorney fees and costs.

Father opposes this request, arguing that Mother has had exclusive use of the family home, and Father has paid all the carrying costs of $19,372 per month. Father argues that this amount exceeds guideline temporary spousal support and child support by about $6,800 per month. He argues that the value received by Mother exceeds how much Father paid his attorneys. Father asserts that when he agreed to pay attorney fees of $16,282, Mother's attorney informed him that Mother had already paid her attorney, and wanted the funds paid directly to her so she could pay back her boyfriend.

Mother further asserts that Father has spent the bonus fund, and requests the Court prohibit Father from spending down community funds. Father argues that the dissipation of the bonus funds illustrates the persistent problem of the parties' inability to agree on how to manage their finances. Father asserts that the parties' monthly outflow, which is $77,000 per month according to Mother (not including Father's monthly rental), or $58,000 per month according to Father, including his rental costs.

Mother's sole basis for her fee request is that Father spent that amount on his attorney's fees. Mother has not presented the required evidence regarding the reasonableness and necessity of the fees requested. Accordingly, Mother's request for fees on that basis is DENIED.

The Court notes Mother's request is for an advance of community funds, rather than for attorney's fees pursuant to FC 2030. The denial of an advance of community funds is without prejudice to any future request under Family Code section 2030.

Maintain $5000 in Joint Account

Mother also seeks an order that Father maintain $5,000 in their Wells Fargo joint account, as previously agreed. Father disputes this, stating he agreed to deposit $5,000 per month, not maintain the account at $5,000 – Father states there is no way financially that he can keep up with Mother's spending.

There is no basis in law or on these facts for an order that Father provide constant access to additional cash for Mother. Mother has not sought child or spousal support – perhaps because, as Father argues, he is paying expenses in excess of the guideline.

Consent for Expenditures of Community Funds

Mother's request that Father be prohibited from using community funds to pay expenses is premature. Any claims that Father owes reimbursements to the community should be resolved at trial.

Father's request to sell the family residence.

Father requests the family residence be listed for sale "forthwith" because his monthly outflow exceeds his net income. Father states that he cannot afford the family residence, and the parties frequently disagreed about finances. Father reports that the parties both spoke with a realtor in December but then Mother refused to engage further. Father asserts that the parties have depleted their liquidity and that selling the house is in the community's best interest. Father argues that the sale of the house is related (Family Code section 213) to Mother's request for orders relating to management and control of community funds.

Mother opposes the sale of the residence and argues that the sale of the family residence is not a related issue. Mother states that she acknowledges the residence will likely be sold, but the realtor advised the parties they needed to do substantial preparatory work, and that the optimal time to list the property is in March. Mother points out that Father's request to sell the house is an example of his exertion of financial control over Mother, and that an order releasing an advance of $33,782 of community funds to Mother would help shift that dynamic.

There is no evidence that the house is at risk of foreclosure. This is a trial issue and unless there is evidence of potential waste or risk of foreclosure, there is no basis for a *pendente lite* order to sell the house at this time. Accordingly, Father's request for an order to sell the family house at this time is DENIED.

Counsel for Father is ordered to prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.